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Case Number: 25NNCV08577 Hearing Date: July 10, 2026 Dept: T

Lilia Melikian vs.

Berberian Enterprises, Inc.

(1)

Demurrer to Plaintiff's Complaint; (2) Motion to Strike Portions of Plaintiff's Complaint

Moving Party: Defendant

Berberian Enterprises, Inc. dba Jons Fresh Marketplace

Responding Party: Plaintiff

Lilia Melikian

Tentative Ruling: (1) Sustain; (2) Grant

BACKGROUND

On December

3, 2025, Plaintiff Lilia Melikian ("Plaintiff") filed a complaint for personal injuries against Defendant Berberian Enterprises, Inc. dba Jons Fresh Marketplace ("Defendant"), alleging the following cause of action: (1) negligence – premises liability.

Defendant now concurrently demurs to the complaint and moves to strike the prayer for punitive damages from the complaint. Plaintiff opposes, and Defendant replies.

MOVING

PARTY POSITION

A. Demurrer

Defendant

argues that Plaintiff's negligence cause of action is barred by virtue of the applicable statute of limitations and that the time to bring this action was not tolled under the delayed discovery rule.

Plaintiff alleges that she sustained injuries from a slip and fall incident on December 2, 2023, yet she filed her complaint on December 5, 2025, after the two-year statute of limitations.

B. Motion to Strike

Defendant argues that Plaintiff's prayer for punitive damages is not supported by specific factual allegations in the complaint that establish the requisite oppression, fraud, or malice. The punitive damages claim is also insufficient against Defendant as a corporate employer.

OPPOSITION

A. Demurrer

Plaintiff

contends that her negligence cause of action did not accrue until December 5, 2023, as her injury was not appreciable until she sought medical care on that date after symptoms began to manifest.

Plaintiff further contends that, even if some harm occurred on the alleged day of her fall, the discovery rule delayed accrual until December 5, and her allegations sufficiently plead around the statute of limitations. Plaintiff also seeks leave to amend should the Court find that the allegations are insufficient to establish delayed accrual.

B. Motion to Strike

Plaintiff contends that her complaint

sets forth facts establishing Defendant's conscious disregard of a known danger based on its use of a real time monitoring system in its grocery store. Plaintiff further contends that allegations regarding Defendant's use and maintenance of this system bare sufficient to establish corporate liability for punitive damages. Plaintiff also seeks leave to amend should the Court determine these facts to be insufficient.

REPLY

A. Demurrer

Defendant

responds that Plaintiff's appreciable harm argument does not create a separate accrual exception and that Plaintiff failed to sufficiently plead around the statute of limitations period applicable to her cause of action.

B. Motion to Strike

Defendant reiterates its arguments

as to why the punitive damages claim should be stricken.

ANALYSIS

I. Legal

Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at p. 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.*

(1945) 26 Cal.2d 149, 156-157.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Motion to Strike

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see, also, City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 [motion may not be based on a party's declaration or factual representations made by counsel in the motion papers].) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)

1. Punitive Damages

Punitive damages may be imposed

where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd.

(a).) “Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.’

[Citation.]” (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable],

the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The

statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’

[Citation.]” (Tomaselli v. Transamerica Ins. Co. (1994) 25

Cal.App.4th 1269, 1287.) And there also “must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

Further, “when seeking damages from

an employer, an employer is not liable for punitive damages arising from an employee’s actions pursuant to Civil Code section 3294(a) unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was

personally guilty of oppression, fraud, or malice. (Civ. Code § 3294, subd. (b).) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or

managing agent of the corporation. (Ibid.)

A motion to strike punitive damages

is properly granted where a plaintiff fails to state a prima facie claim for punitive damages, including well-pleaded allegations that defendant is guilty of oppression, fraud or malice. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.) "Mere negligence, even gross negligence, is not sufficient to justify such an award" for punitive damages. (Kendall Yacht Corp. v. United California Bank (1975) 50 Cal.App.3d 949, 958.) Moreover, conclusory allegations are not sufficient to support a claim for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Lastly, "[t]he mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

II. Meet

and Confer

Per the declaration of Defendant's counsel

Mark. T. Domeyer, counsel for the parties met and conferred by telephone at least five days before a responding pleading was due and were unable to reach a resolution as to the issues addressed in the instant demurrer and motion to strike. (Domeyer Decl., at p. 1.)

III. Discussion

A.

Demurrer

The statute of limitations period

for a premise liability or negligence action seeking to recover for personal injuries is two years. (Code Civ. Proc.

§ 335.1.) "The limitations period commences when the cause of action accrues. [Citations.]" (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1317.) "Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' [Citation.]" (Fox v. Ethicon Endo-Surgery, Inc.

(2005) 35 Cal.4th 797, 806.) “An important exception to the general rule of accrual is the ‘discovery rule,’ which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (Id. at p. 806.)

“A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (E-Fab, Inc., supra, 153 Cal.App.4th at p. 1319.) Although resolution of the statute of limitations issues is normally a question of fact, (Fox, supra, 35 Cal.4th at p. 810), “whenever reasonable minds can draw only one conclusion from the evidence, the question becomes one of law.” (Snow v. A.H. Robins Co. (1985) 165 Cal.App.3d 120, 128.)

Here, Plaintiff alleges that, on December 2, 2023, she was an invited guest at Defendant’s grocery store and that she slipped and fell on produce that was left on the floor of the store while walking near the produce aisle. (Compl. ¶ 9.) As Plaintiff’s complaint was filed on December 5, 2025, and as the subject incident took place more than two years prior to this filing date, the complaint shows on its face that Plaintiff’s negligence cause of action would be barred without the benefit of the discovery rule. Accordingly, Plaintiff must specifically plead facts, not conclusions, showing the time and manner of her discovery and her inability to have made this discovery earlier despite reasonable diligence. (E-Fab, Inc., supra, 153 Cal.App.4th at p. 1319.)

The lone allegation in Plaintiff’s complaint addressing this delayed discovery is as follows: “Plaintiff did not discover, and through reasonable diligence could not have discovered, the nature, seriousness and negligence cause of her injuries until December 5, 2023, when her symptoms first manifested.” (Compl. ¶ 10.) However, this conclusory allegation fails to set forth facts showing Plaintiff’s inability to have made earlier discovery of her injuries from the alleged slip and fall incident despite

reasonable diligence.

Therefore, as Plaintiff failed to specifically plead facts showing this inability, the demurrer is sustained. Although Plaintiff requests leave to amend to allege additional facts, Plaintiff has failed to cite a single case where the delayed discovery rule was applied to a slip and fall claim, trip and fall claim, automobile accident or any other typical personal injury claim where the date and cause of the injury was actually known to Plaintiff. Applying the delayed discovery rule under these circumstances does not appear to advance the public policy supporting the doctrine. In the event that Plaintiff is unable to cite any case applying the rule under similar circumstances, the demurrer will be sustained without leave to amend.

B.

Motion to
Strike

Defendant seeks to strike the prayer for punitive damages from Plaintiff's complaint.

As Defendant is a corporation, Code of Civil Procedure section 3294 requires that the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice "must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code § 3294, subd. (b).) "'Managing agents' are employees who 'exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy.' [Citation.] [The California Supreme Court in *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563] concluded: '[T]he Legislature intended the term 'managing agent' to include only those corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking so that their decisions ultimately determine corporate policy.' [Citation.] '[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant

aspects of a corporation's business.' [Citation.]" (Davis v. Kiewit Pacific Co. (2013) 220 Cal.App.4th 358, 366.)

Here, Plaintiff still fails to allege any facts regarding the person(s) who acted as managing agent(s) on behalf Defendant, as well as any facts regarding whether said agent(s) acted with the requisite knowledge and in the requisite manner to establish their liability for these claimed punitive damages as a corporate employer. (See Compl. ¶¶ 4, 8, and 18.) Nor do the allegations of the existence of a real time monitoring system on the premises and Defendant's awareness of the dangerous condition of the floor show a conscious disregard sufficient to justify punitive damages. (See id. ¶¶ 12, 14, 28; Turman, supra, 191 Cal.App.4th at p. 63; cf. Taylor v. Superior Court (1979) 24 Cal.3d 890, 899 ["Although the circumstances in a particular case may disclose similar wilful or wanton behavior in other forms, ordinarily, routine negligent or even reckless disobedience of traffic laws would not justify an award of punitive damages."].)

Therefore, as Plaintiff failed to plead sufficient facts to support her claim for punitive damages against Defendant, and as Plaintiff failed to show that a reasonable possibility exists of amending the complaint to cure these deficiencies, the motion to strike the punitive damages allegations is granted without leave to amend.

RULING

Defendant

Berberian Enterprises, Inc. dba Jons Fresh Marketplace's Demurrer to Plaintiff Lilia Melikian's Complaint is SUSTAINED.

Absent a showing that the delayed discovery rule can be applied under the circumstances of this case, the demurrer will be sustained without leave to amend.

Defendant's

Motion to Strike Portions of Plaintiff's Complaint is GRANTED without leave to amend.